

24SMCV01059 24SMCV01059

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Case Number: 24SMCV01059 Hearing Date: July 30, 2026 Dept: N

Plaintiff Jane Doe's Motion for Leave to File Second Amended Complaint is GRANTED.

The Court sets an Order to Show Cause re: Proceeding Anonymously for TBD.

Plaintiff Jane Doe to give notice.

Plaintiff Jane Doe ("Plaintiff") moves the Court for an order allowing her leave to file a Second Amended Complaint to allege claims against proposed new defendants Pax Prentiss, Pax Prentiss Trust, Chris Prentiss Trust, and Passages Silver Strand LLC d/b/a Passages Ventura, as well as new allegations relating to Plaintiff's alter ego theory of liability. Defendant Grasshopper House, LLC dba Passages Malibu ("Defendant") opposes the motion on the ground that the alter ego theory fails as a matter of law, Plaintiff unreasonably delayed in bringing the motion, and Defendant will be prejudiced if the complaint is amended, while Plaintiff will not be prejudiced if the motion is denied.

While Plaintiff has failed to provide the required identification of the proposed amendments by page, paragraph, and line number, she has provided a redlined copy of the proposed Second Amended Complaint with her motion, which allows the Court to easily identify the proposed amendments. Plaintiff also represents that she took three depositions in January and February 2026, with the deposition of Pax Prentiss revealing the alter ego facts, but Defendant declined to stipulate to the filing of the Second Amended Complaint. (Mot., Daily Decl. ¶¶ 8, 11.) Plaintiff argues that the facts show a unity of interest and ownership between Defendant, Passages Ventura, Pax Prentiss, Pax Trust, and Chris Trust, such that she seeks to amend the complaint to allege facts showing the same trust ownership, absence of corporate formalities, unified officer structure, shared employees, a single payroll, and the use of corporate entities for personal purposes. Defendant argues that this motion is a premature attempt to add post-judgment debtors, and the alter ego doctrine is not intended to prevent an "injustice" of an inability to collect damages.

The Court finds it proper to allow Plaintiff to amend the complaint. While there is already a trial date set, it is not clear that the amendments will warrant an extensive amount of discovery, i.e., some depositions have already taken place, and this is one theory of alter ego liability rather than many new causes of action. Further, the Court is not inclined to find unreasonable delay where Plaintiff sought to amend after taking relevant depositions, and the facts alleged could allow the trier of fact to conclude that alter ego liability is warranted. However, the Court notes that the case docket shows no motion by Plaintiff at any point to litigate this action under a Jane Doe pseudonym. Under Code of Civil Procedure section 422.40, the names of all parties to a civil action must be included in the complaint. "The judicial use of 'Doe plaintiffs' to protect legitimate privacy rights has gained wide currency, particularly given the rapidity and ubiquity of disclosures over the World Wide Web." (Starbucks Corp. v. Superior Court (2008) 168 Cal.App.4th 1436, 1452, fn. 7.) "[F]ederal courts have permitted plaintiffs to use pseudonyms in three situations: (1) when identification creates a risk of retaliatory physical or mental harm; (2) when anonymity is necessary to preserve privacy in a matter of sensitive and highly personal nature; and (3) when the anonymous party is compelled to admit his or her intention to engage in illegal conduct, thereby risking criminal prosecution," and "a party may preserve his or her anonymity in judicial proceedings in special circumstances when the party's need for anonymity

outweighs prejudice to the opposing party and the public's interest in knowing the party's identity." (Doe v. Lincoln Unified School District (2010) 188 Cal.App.4th 758, 767, quotation marks, citations, and brackets omitted.)

"Because of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties' identities confidential." (Department of Fair Employment and Housing v. Superior Court (2022) 82 Cal.App.5th 105, 110.) "Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest." (Ibid.) "Much like closing the courtroom or sealing a court record, allowing a party to litigate anonymously impacts the First Amendment's right to public access." (Id. at p. 111.) Thus, in the absence of a statute expressly authorizing such confidentiality, "[b]efore a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test," and the "request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access." (Ibid.) "In deciding the issue, the court must bear in mind the critical importance of the public's right to access judicial proceedings," and "[o]utside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur only in the rarest of circumstances." (Id. at pp. 111-112.)

Plaintiff's Second Amended Complaint, as with prior iterations of her pleading, alleges sexual assault by Defendant Thomas Garth Moore. It is reasonable to conclude that Plaintiff may be subject to harm and retaliation should her name be publicly revealed. Nonetheless, in the absence of legal authority to the contrary, the Court cannot conclude at this juncture that the risk of harm and retaliation to Plaintiff provides a sufficient basis to allow her to use a pseudonym in this case, even where the nature of Plaintiff's allegations is sensitive and personal. The Court does not opine here whether Plaintiff is permitted to proceed anonymously, as that is not currently before the Court. Should Plaintiff wish to proceed anonymously in this action, she must move for permission to do so in accordance with California Rules of Court, rule 2.551(b). Plaintiff shall file such a motion within the next sixty (60) days, and if she should fail to do so, the Court will issue an order requiring her to file a Third Amended Complaint with her true name in place of Jane Doe.

Accordingly, Plaintiff Jane Doe's Motion for Leave to File Second Amended Complaint is GRANTED. The Court sets an Order to Show Cause re: Proceeding Anonymously for TBD.

Evidentiary Objections

Plaintiff objects to certain statements within the declaration of Sarena L. Kustic. The Court declines to rule on the objections, as the evidence at issue was not material to the Court's ruling herein.